

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #1	CCRB Case #: 202003435	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/08/2020 3:00 PM	Location of Incident: Rockaway Boulevard & 113th Street	Precinct: 106	18 Mo. SOL 10/8/2021	EO SOL 5/4/2022	
Date/Time CV Reported Thu, 05/21/2020 10:18 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 05/21/2020 10:18 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Justin Steigerwald	16410	958093	106 PCT
2. POM James Perrino	19575	962685	106 PCT
3. PO Michael Fortunato	27771	954820	106 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Michael Fortunato	Abuse: Police Officer Michael Fortunato stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
B. PO Michael Fortunato	Abuse: Police Officer Michael Fortunato frisked § 87(2)(b)	
C. PO Justin Steigerwald	Abuse: Police Officer Justin Steigerwald frisked § 87(2)(b)	
D. PO Justin Steigerwald	Abuse: Police Officer Justin Steigerwald frisked § 87(2)(b)	
E. PO Michael Fortunato	Abuse: Police Officer Michael Fortunato frisked § 87(2)(b)	
F. POM James Perrino	Abuse: Police Officer James Perrino frisked § 87(2)(b)	
G. PO Michael Fortunato	Abuse: Police Officer Michael Fortunato searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
H. PO Justin Steigerwald	Abuse: Police Officer Justin Steigerwald searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
I. POM James Perrino	Abuse: James Perrino searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
J. PO Michael Fortunato	Abuse: Police Officer Michael Fortunato damaged § 87(2)(b)'s property.	
K. PO Justin Steigerwald	Abuse: Police Officer Justin Steigerwald threatened to arrest § 87(2)(b)	
L. PO Michael Fortunato	Abuse: Police Officer Michael Fortunato failed to provide § 87(2)(b) with a business card.	
M. PO Michael Fortunato	Abuse: Police Officer Michael Fortunato failed to provide § 87(2)(b) with a business card.	

Officer(s)	Allegation	Investigator Recommendation
N.PO Justin Steigerwald	Abuse: Police Officer Justin Steigerwald failed to provide § 87(2)(b) with a business card.	
O.PO Justin Steigerwald	Abuse: Police Officer Justin Steigerwald failed to provide § 87(2)(b) with a business card.	
P.POM James Perrino	Abuse: Police Officer James Perrino failed to provide § 87(2)(b) with a business card.	
Q.POM James Perrino	Abuse: Police Officer James Perrino failed to provide § 87(2)(b) with a business card.	
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 21, 2020, § 87(2)(b) filed this complaint on behalf of himself and his wife § 87(2)(b) via the CCRB call processing system.

On April 8, 2020, at approximately 3:00 P.M., in the vicinity of Rockaway Boulevard and 113th Street in Queens, PO Michael Fortunato of the 106th Precinct, who was working with PO Justin Steigerwald and PO James Perrino of the same command, pulled over the vehicle that § 87(2)(b) was driving, and in which § 87(2)(b) the vehicle's owner, was a passenger, for an alleged New York State Vehicle and Traffic Law infraction (**Allegation A, Abuse of Authority: § 87(2)(g)**). Upon approaching the vehicle, PO Fortunato stated that he smelled marijuana and asked § 87(2)(b) to step out of the vehicle. While standing on the driver's side of the vehicle, PO Fortunato patted § 87(2)(b) down (**Allegation B, Abuse of Authority: § 87(2)(g)**). At the same time, PO Steigerwald allegedly also patted § 87(2)(b) down (**Allegation C, Abuse of Authority: § 87(2)(g)**). PO Fortunato then told § 87(2)(b) to move to the back of the vehicle, where PO Steigerwald patted him down again (**Allegation D, Abuse of Authority: § 87(2)(g)**). PO Fortunato also allegedly patted § 87(2)(b) down again at the back of the vehicle (**Allegation E, Abuse of Authority: § 87(2)(g)**). PO Perrino then told § 87(2)(b) to step out of the vehicle and allegedly patted her down (**Allegation F, Abuse of Authority: § 87(2)(g)**). PO Fortunato then searched the vehicle (**Allegation G, Abuse of Authority: § 87(2)(g)**). PO Steigerwald and PO Perrino also allegedly searched the vehicle (**Allegations H and I, Abuse of Authority: § 87(2)(g)**). During the search, PO Fortunato allegedly ripped the fabric on a seat in the vehicle and damaged a compartment in the trunk (**Allegation J, Abuse of Authority: § 87(2)(g)**). PO Steigerwald then allegedly threatened to arrest § 87(2)(b) (**Allegation K, Abuse of Authority: § 87(2)(g)**). During the interaction, PO Fortunato, PO Steigerwald, and PO Perrino failed to provide § 87(2)(b) and § 87(2)(b) with business cards (**Allegations L, M, N, and O, Abuse of Authority: § 87(2)(g)** and **Allegations P and Q, Abuse of Authority: § 87(2)(g)**). § 87(4-b) § 87(2)(g)

Neither § 87(2)(b) nor § 87(2)(b) was arrested or given any summonses.

The investigation obtained body-worn camera (BWC) footage of the incident from PO Fortunato, PO Steigerwald, and PO Perrino **(01-03 Board Review)**.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Fortunato stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that on April 8, 2020, at approximately 3 P.M., PO Fortunato pulled over the vehicle that § 87(2)(b) was driving near the intersection of Rockaway Boulevard and 113th Street in Queens for allegedly failing to signal while changing lanes. Further undisputed is that § 87(2)(b) was in the front passenger's seat at the time.

During his interview and follow-up statement, § 87(2)(b) stated that he did not recall changing lanes prior to PO Fortunato pulling him over (**04-05 Board Review**). He further stated that he had not violated any traffic laws prior to the officers pulling him over and that everything in the vehicle was in working order at the time.

During her interview and follow-up statement, § 87(2)(b) stated that prior to being pulled over, § 87(2)(b) did not commit any traffic infractions (**06-07 Board Review**). To her knowledge, he had not changed lanes while driving until after the officers put on their lights and sirens.

PO Fortunato testified that he noticed § 87(2)(b) fail to signal when changing lanes

somewhere between 110th and 113th Streets **(08 Board Review)**. He did not recall if he, PO Steigerwald, and PO Perrino discussed stopping the vehicle. It was his decision to stop § 87(2)(b)'s vehicle. This was based on the vehicle traffic law (VTL) infraction and no other reason. Upon stopping the vehicle, PO Fortunato approached § 87(2)(b)'s window and explained that he had stopped the vehicle for failing to signal. He believed that § 87(2)(b) stated, "My bad," acknowledging that he had failed to signal. PO Fortunato decided not to enforce the VTL infraction because § 87(2)(b) and § 87(2)(b) were very respectful.

PO Steigerwald testified that he was sitting in the front passenger's seat of the police vehicle when PO Fortunato, who was driving, stated that he was going to initiate a vehicle stop due to a failure to signal **(09 Board Review)**. There was no conversation among officers beyond this. It was PO Fortunato's decision to pull over the vehicle. PO Steigerwald did not observe § 87(2)(b) fail to signal while changing lanes. Since the civilians were easy-going and compliant, the officers decided to allow § 87(2)(b) to go with a verbal warning for the failure to signal and without issuing any summonses. This was in part PO Steigerwald's decision since he did not write any summonses.

PO Fortunato's BWC begins while he is driving on Rockaway Boulevard with the police vehicle lights activated **(01 Board Review)**. The video does not capture any VTL violation. At 01:32 in the video, PO Fortunato approaches the driver's side and asks for § 87(2)(b)'s license, registration, and insurance. PO Fortunato then states, "Just when you shot over the lane, you gotta use your signal. That's why I pulled you over." § 87(2)(b) states, "I'm sorry, sir."

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Michael Fortunato frisked § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Justin Steigerwald frisked § 87(2)(b)
Allegation (D) Abuse of Authority: Police Officer Justin Steigerwald frisked § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Michael Fortunato frisked § 87(2)(b)
Allegation (F) Abuse of Authority: Police Officer James Perrino frisked § 87(2)(b)
Allegation (G) Abuse of Authority: Police Officer Michael Fortunato searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.
Allegation (H) Abuse of Authority: Police Officer Justin Steigerwald searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.
Allegation (I) Abuse of Authority: Police Officer James Perrino searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that, upon approaching the § 87(2)(b) vehicle, PO Fortunato stated that the vehicle smelled like marijuana and told § 87(2)(b) to exit the vehicle. PO Fortunato then patted § 87(2)(b) down over his clothes. Then, at the back of the vehicle, PO Steigerwald patted § 87(2)(b) down over his sweatshirt pocket. PO Perrino asked § 87(2)(b) to exit the vehicle. The officers then told § 87(2)(b) and § 87(2)(b) to stand at the back of the vehicle.

§ 87(2)(b) stated that when PO Fortunato told him the vehicle smelled like marijuana, he replied that it did not and that no one had smoked in the vehicle **(04-05 Board Review)**. At the time, § 87(2)(b) was wearing a fitted sweatshirt and pants. His left pants pocket contained \$1,000 rolled up in a rubber band and his other pockets were empty. When § 87(2)(b) exited the vehicle, PO Fortunato and PO Steigerwald patted him down simultaneously over his arms, legs, pockets, and groin. One of the officers felt the bulge in the left pants pocket and § 87(2)(b) told them it was money. No officer entered § 87(2)(b)'s pockets. § 87(2)(b) was wearing a fitted red sweatsuit and had nothing in her pockets. § 87(2)(b) saw PO Perrino pat § 87(2)(b) down but could not

see where he touched. When the § 87(2)(b) were standing at the back of the vehicle, all three officers took turns searching the vehicle. During the vehicle search, officers found § 87(2)(b)'s bag containing approximately one gram of marijuana inside the front passenger door pocket. PO Steigerwald and PO Fortunato then patted § 87(2)(b) down a second time on and in between his legs. PO Steigerwald also patted § 87(2)(b) down over his pockets. Neither § 87(2)(b) nor § 87(2)(b) had smoked marijuana at any time during the prior week. § 87(2)(b) did not smoke any marijuana that day until after the vehicle stop, when they arrived at home. The vehicle did not smell like marijuana. The officers then allowed § 87(2)(b) and § 87(2)(b) to leave without issuing them summonses or arresting them.

§ 87(2)(b) stated that while she was exiting the vehicle, she saw PO Fortunato pat § 87(2)(b) down on his armpits, the length of his thighs, his waist, his groin, and his front and back pockets (**06-07 Board Review**). When § 87(2)(b) stepped out of the vehicle, PO Perrino asked if she had anything on her and she said she did not. PO Perrino then patted down § 87(2)(b)'s front pockets. § 87(2)(b) pulled her pockets inside out to show him that they were empty. PO Perrino told § 87(2)(b) to go to the back of the vehicle. While the § 87(2)(b) stood at the back of the vehicle, PO Fortunato, PO Perrino, and two additional officers who arrived later took turns repeatedly searching the vehicle. The officers then told the § 87(2)(b) to sit in the vehicle and an officer searched the trunk. During the vehicle search, officers recovered two marijuana joints belonging to § 87(2)(b) from the front passenger door. PO Fortunato told the § 87(2)(b) that there was marijuana in the vehicle and walked away. The officers did not confiscate the marijuana. § 87(2)(b) had smoked marijuana at home approximately one hour prior to the vehicle stop but not inside the vehicle. She did not believe her vehicle smelled like marijuana since she does not smoke inside of it and always has air freshener in it. During the vehicle stop, since § 87(2)(b) was wearing the same outfit as when she had smoked, it was possible that she smelled like marijuana.

At 01:47 in PO Fortunato's BWC, PO Fortunato is standing at the driver's side window while the § 87(2)(b) are still seated inside (**01 Board Review**). PO Fortunato states, "Let me ask you something. Were you smoking weed in the car or is there weed in the car because I'm getting a little – did you smoke earlier or something?" § 87(2)(b) nods toward § 87(2)(b) and states, "She did." PO Fortunato states, "All right. Not a big deal. Is there anything in the car that's not supposed to be?" § 87(2)(b) states, "No sir. No sir." PO Fortunato then tells § 87(2)(b) to exit the vehicle. At 02:05, § 87(2)(b) is standing facing the vehicle with his hands on top of the vehicle while PO Fortunato pats down his lower body and legs. At 02:30, PO Fortunato tells § 87(2)(b) to step to the back of the vehicle and tells PO Steigerwald, who is at the back of the vehicle, "Just check his hoodie." There is no obvious bulge visible in § 87(2)(b)'s hoodie on the footage. Between 02:50 and 07:10, PO Fortunato searches the vehicle's front and back seats, door pockets, compartments, and floorboards, as well as several bags inside the vehicle. At 07:23, when the § 87(2)(b) are back inside the vehicle, PO Fortunato searches the trunk. At 08:43, PO Fortunato tells PO Perrino that he found some marijuana in the passenger's side door pocket.

At 02:26 in PO Steigerwald's BWC, PO Steigerwald pats § 87(2)(b) down over his shirt pocket while they are at the back of the vehicle (**02 Board Review**).

At 02:23 in PO Perrino's BWC, PO Perrino tells § 87(2)(b) to exit the vehicle (**03 Board Review**). When she does, PO Perrino states, "You have nothing on you, right?" While standing approximately one foot away from § 87(2)(b) and without touching her, PO Perrino states, "All right. Just follow me to the back of the car." They then walk to the back of the vehicle without touching. At 05:07, § 87(2)(b) states, "Excuse me officers, can I ask you something? Why are you guys searching the car?" PO Perrino states, "Cause it smells like marijuana." PO Steigerwald states, "Cause it smells like weed. If there's no weed in the car, you're on your way." § 87(2)(b) states, "I was smoking weed." At 06:21, PO Steigerwald asks § 87(2)(b) why she is not driving since the vehicle belongs to her. § 87(2)(b) states, "I mean, I'm smoking so I wasn't trying to drive."

PO Fortunato testified that when he approached the driver's side window, he smelled a strong odor of fresh, unburnt marijuana coming from the vehicle (**08 Board Review**). The odor was not

emanating from anywhere specific within the vehicle. PO Fortunato asked § 87(2)(b) if anyone had been smoking in the vehicle and did not recall what, if anything, § 87(2)(b) said in response. PO Fortunato asked § 87(2)(b) to exit the vehicle to conduct a vehicle search due to the odor of marijuana. PO Fortunato had previously written more than 12 summonses for marijuana and had undergone NYPD Academy trainings regarding identifying marijuana based on its look and smell. PO Fortunato then quickly patted down § 87(2)(b) for weapons on his waistband, legs, and around the pockets on his legs. There was no reason to think that § 87(2)(b) had a weapon, but this was standard protocol. There were no visible bulges on § 87(2)(b) and PO Fortunato did not feel anything during the pat down. As § 87(2)(b) turned to walk to the back of the vehicle where PO Steigerwald was standing, PO Fortunato noticed that § 87(2)(b)'s front sweatshirt pocket was protruding and bulging. This was unusual because usually these pockets lay flat. PO Fortunato therefore told PO Steigerwald to pat down § 87(2)(b)'s front pocket and PO Steigerwald did so. PO Fortunato did not know if any officer patted § 87(2)(b) down or who asked her to exit the vehicle. PO Fortunato then searched the vehicle and found less than an ounce of loose, vegetative marijuana in a mostly empty Ziploc bag in the front passenger door pocket. PO Fortunato lifted the bag up, looked inside it, and put it back without enforcing the marijuana violation because the § 87(2)(b) were very respectful, the interaction was pleasant, and the amount of marijuana was very small.

PO Steigerwald testified that he could already smell a strong odor of unburnt marijuana when he exited the police vehicle (**09 Board Review**). He did not recall if the windows on the § 87(2)(b)'s vehicle were open or closed as he approached. PO Steigerwald had previously conducted approximately 12 marijuana arrests and had attended a special NYPD training regarding marijuana field testing in which officers learned to identify marijuana by touch, smell, and in different types of packaging. While standing on the driver's side, PO Fortunato explained to § 87(2)(b) that the vehicle smelled like marijuana. PO Steigerwald was standing to the rear of the vehicle. There was no indication that either civilian had any weapons. PO Fortunato asked § 87(2)(b) to step out and patted him down. PO Steigerwald did not notice any bulges on § 87(2)(b). An officer also patted down § 87(2)(b) but PO Steigerwald did not recall whether it was he or PO Perrino who did so. While PO Fortunato conducted a vehicle search, PO Steigerwald and PO Perrino stood near the trunk with the § 87(2)(b). There, PO Steigerwald explained the stop more thoroughly, stating that his partner had noticed the failure to signal. He also explained that the vehicle search was because the officers had probable cause due to the odor of marijuana. PO Steigerwald did not recall if the civilians acknowledged that the vehicle smelled like marijuana. When PO Steigerwald was explaining about the odor of marijuana, § 87(2)(b) stated that they had smoked earlier in the day. PO Fortunato did not say anything to PO Steigerwald after the vehicle search about what he saw, and PO Steigerwald did not know if he found any marijuana or other illegal items. After watching his BWC from the 02:28 to 02:36, PO Steigerwald acknowledged that he patted down § 87(2)(b)'s hoodie pocket. He stated that he must have seen a bulge in § 87(2)(b)'s pocket and grabbed it to be safe and ensure it was not a weapon. PO Steigerwald did not recall what the bulge looked like in terms of shape or why he thought it was a weapon. He did not recall what the bulge felt like.

According to People v. Chestnut, 43 A.D.2d 260 (1974), the smell of marijuana smoke with nothing more can provide sufficient probable cause for officers to search an automobile and its occupants (**10 Board Review**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (J) Abuse of Authority: Police Officer Michael Fortunato damaged § 87(2)(b)'s property.

It is undisputed that PO Fortunato searched the front passenger seat area, as well as the vehicle's trunk.

§ 87(2)(b) stated that when she returned to her vehicle, she noticed that the stitching on the front passenger's leather seat was ripped (**06 Board Review**). The seat had been in perfect condition when she left the vehicle. Additionally, when she looked inside her trunk, she saw that the door to a small compartment that held a first aid kit was broken. § 87(2)(b) believed that during the search PO Fortunato had not known how to open the compartment and so just broke it. Prior to the vehicle search, the compartment was in working order and § 87(2)(b) could hit a button or clip on the door to open and close it.

During his follow-up statement, § 87(2)(b) stated that prior to the search, there had been a small hole in the seat from a cigarette burn that was so small that nothing could fit inside it (**05 Board Review**). However, after the search, the hole was much larger. § 87(2)(b) did not witness the vehicle search but believed that PO Fortunato cut the fabric to see what was inside the hole. Nothing in the vehicle was damaged besides the seat.

§ 87(2)(b) provided two photographs of the damage to the seat (**11 Board Review**). The photos show that a seam on the leather seat is ripped almost all the way across. One photo shows § 87(2)(b) pulling the fabric down, showing a hole slightly larger than his hand. There is no cigarette burn evident in the photos.

At 04:52 in PO Fortunato's BWC, PO Fortunato searches the front passenger's side of the § 87(2)(b)'s vehicle (**01 Board Review**). Before PO Fortunato touches the seat, a hole in the fabric is visible stretching almost from one side of the seat to the other. At 05:32, PO Fortunato lifts the fabric around the hole with his thumb and shines his flashlight inside. There is no sound or indication of the fabric ripping further while PO Fortunato is touching it. He does not touch the area of the hole again. At 07:23 minutes, the § 87(2)(b) are back inside their vehicle and PO Fortunato searches the following areas of the trunk: a compartment on the right side, a cardboard box with bottles of Similac, the spare tire area, a compartment on the left side of the trunk, a mesh pocket on the left side of the trunk, and a small plastic box and cardboard box containing business cards that were inside the left mesh pocket. He does not break any doors while doing this.

During his interview, PO Fortunato stated that, while searching the front passenger area, he looked inside a hole in the fabric of the seat since it looked like somewhere that someone could put something (**08 Board Review**). The seam was already ripped prior to his search, and he did not rip it further. He did not damage anything inside the trunk. He opened compartments inside the trunk, but he put everything back where he found it.

A comparison of BWC footage of the front passenger seat prior to PO Fortunato touching it and the photographs that § 87(2)(b) provided shows that the ripped seam is the same length in both. Additionally, the footage of PO Fortunato looking inside the seam contains no sound of ripping and the fabric does not appear to rip further. § 87(2)(b) testified that nothing in the vehicle was damaged besides the front passenger's seat. BWC also shows footage of the trunk search in full and does not show PO Fortunato breaking any compartments or detaching any compartment doors. § 87(2)(b)

Allegation (K) Abuse of Authority: Police Officer Justin Steigerwald threatened to arrest § 87(2)(b)

During his interview, § 87(2)(b) stated that PO Steigerwald knew him from a 2014 incident in which a different officer from the 106th Precinct wrongfully arrested one of § 87(2)(b)'s friends **(04 Board Review)**. During the vehicle stop, PO Steigerwald referenced this incident by stating that he would see to it that § 87(2)(b) would “do 25 to life,” just like his friend.

PO Steigerwald stated that during the vehicle stop, he did not threaten to arrest § 87(2)(b) nor did he tell him that he would “do 25 to life” like a friend of his **(09 Board Review)**.

PO Steigerwald’s BWC footage does not show PO Steigerwald or any other officer making the statement that § 87(2)(b) alleged or issuing any threats to arrest § 87(2)(b) **(02 Board Review)**.

§ 87(2)(g)

Allegation (L) Abuse of Authority: Police Officer Michael Fortunato failed to provide § 87(2)(b) with a business card.

Allegation (M) Abuse of Authority: Police Officer Michael Fortunato failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: Police Officer Justin Steigerwald failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: Police Officer Justin Steigerwald failed to provide § 87(2)(b) with a business card.

Allegation (P) Abuse of Authority: Police Officer James Perrino failed to provide § 87(2)(b) with a business card.

Allegation (Q) Abuse of Authority: Police Officer James Perrino failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) and § 87(2)(b) stated that none of the officers offered or provided them with a business card during the incident **(04-05 Board Review)**.

PO Fortunato testified that he did not provide the civilians with a business card because vehicle stops involving VTL and Penal Law infractions do not require that officers provide them **(08 Board Review)**. He did not see either of his partners provide the § 87(2)(b) with their business cards.

PO Steigerwald stated that he did not recall if he offered § 87(2)(b) his business card and did not know if any other officers had offered theirs **(09 Board Review)**.

BWC footage from PO Fortunato, PO Perrino, and PO Steigerwald show the incident in its entirety **(01-03 Board Review)**. No officer ever offers or provides either civilian with their business cards.

According to NYPD Administrative Guide §14-174, uniformed members of the service are required to offer a business card upon the conclusion of law enforcement activities that do not result in arrests or summonses, including frisks and searches “of persons or property, including vehicles,” **(12 Board Review)**.

§ 87(2)(g)

According to DAO, PO Perrino resigned on April 25, 2021 **(13 Board Review)**. § 87(2)(g)

§ 87(4-b) § 87(2)
(c)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(4-b) § 87(2)
(c)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to six additional CCRB complaints, § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(b) has been a party to one additional CCRB complaint, § 87(2)(b)
§ 87(2)(b)
- PO Fortunato has been a member of service for eight years and has been a subject in two additional CCRB complaints and two additional allegations, neither of which were substantiated. § 87(2)(g)
§ 87(2)(g)
- PO Steigerwald has been a member of service for six years and has been a subject in one additional CCRB complaint and two additional allegations, neither of which were substantiated. § 87(2)(g)
§ 87(2)(g)
- PO Perrino has been a subject in one other complaint and two additional allegations, which were not substantiated. CTS does not provide the number of years for which PO Perrino was a member of service.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On November 17 and November 30, 2020, the New York City Office of the Comptroller confirmed that neither § 87(2)(b) nor § 87(2)(b) filed a Notice of Claim in regards this to complaint **(19-20 Board Review)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Squad: 1

Investigator: Rachel Adler Investigator Rachel Adler 11/22/2021
Signature Print Title & Name Date

Squad Leader: Mgr. Joy Almeyda 11.24.21

Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date